

26NWLC06691 26NWLC06691

County: los-angeles

Division: Civil Law and Motion

Department: Y

Hearing date: 2026-07-31

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Case Number: 26NWLC06691 Hearing Date: July 31, 2026 Dept: Y

26NWLC06691: JPMORGAN CHASE BANK, N.A. vs GABRIEL GARCIA

Tentative Ruling:

The Court has read and reviewed the moving papers filed by Plaintiff JPMorgan Chase Bank, N.A. ("Plaintiff") in support of its Motion for Judgment on the Pleadings, including the meet and confer letter dated May 4, 2026. No opposition has been filed by Defendant Gabriel Garcia ("Defendant").

The Court finds that Defendant, in his Answer filed on April 6, 2026, admitted all of the statements of the complaint and did not indicate any affirmative defenses. He requested a payment plan due to financial hardship.

Although the Court may consider financial hardship of the Defendant, if and when Plaintiff seeks to collect on the judgment, the Court cannot consider "financial hardship" as an affirmative defense to the debt owed.

Plaintiff's Motion for Judgment on the Pleadings is GRANTED as the Complaint states facts sufficient to constitute a cause of action against Defendant and the Answer does not state facts sufficient to constitute a defense.

The Court orders Judgment in favor of Plaintiff JPMorgan Chase Bank, N.A. and against Defendant Gabriel Garcia for the principal sum of \$9,320.00 plus costs in the amount of zero, for a total Judgment of \$9,320.00.

Plaintiff must submit a Proposed Judgment to the Court for review.

Plaintiff to give notice.